

adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 18, 2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Thacker v. Anguiano**
Superior Court Case No. 23CECG02079

Hearing Date: August 20, 2026 (Dept. 403)

Motion: By Plaintiff for Entry of Default Judgment

Tentative Ruling:

To deny without prejudice.

**If oral argument is timely requested, it will be entertained on
Tuesday, August 25, 2026, at 3:30 p.m. in Department 403.**

Explanation:

A party seeking a default judgment on declarations must use a mandatory Form CIV-100, and must additionally file: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a declaration of nonmilitary status as to each defendant against whom the judgment is sought; (6) a proposed form of judgment; (7) a dismissal of all parties against whom the judgment is not sought; (8) exhibits as necessary; and (9) a request for attorney fees if applicable. (Cal. Rules of Ct., rule 3.1800(a).)

Here, no papers were filed in advance of the hearing. Applications for default judgment on declarations pursuant to Code of Civil Procedure section 585, subdivision (d) are preferred. (Fresno Superior Court Local Rules, rule 2.1.14.) In any event, the absence of the mandatory Form CIV-100 alone requires a denial.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 19, 2026.
(Judge's initials) (Date)